DIVISION BENCH **ITEM NO.1**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No. 19/ALD/2022 IN CA (CAA) No. 07/ALD/2023
(Second Motion)

Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation:

AVENUE SALES PRIVATE LIMITED
(CIN: U51109UP2007PTC159127)

……. **Petitioner / Transferor Company No.1**

AND

BLACKBASS TRADELINK PRIVATE LIMITED
(CIN: U51909UP2010PTC083026)

……. Petitioner / Transferor Company No.2

AND

GODHULI RETAILERS PRIVATE LIMITED,
(CIN: U51909UP2010PTC083027)

******* Petitioner/Transferor Company No.3**

AND

HERITAGE COMMOSALES PRIVATE LIMITED,
(CIN: U51909UP 2010PTC083029)

******* Petitioner/Transferor Company No.4**

AND

RAM KRIPAL EXIM PRIVATE LIMITED
(CIN: U74900UP2010PTC039567)

******* Petitioner/Transferor Company No .5**

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AND

ARYA TRADECOM PRIVATE LIMITED,
(CIN: U51109UP2008PTC083028)

******* Petitioner/Transferor Company No.6**

AND

RAYANA PAPER BOARD INDUSTRIES LIMITED
(CIN: U21011UP1986PLC008433)

******* Petitioner/Transferee Company No.7**

Order Dated: 19th October, 2023

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)

HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present:

For the Petitioner Companies : Sh. N. Gurumurthy, FCA alongwith Ms. Aisha Amin, Advocate

ORDER

1. This is a joint Second Motion company petition filed by the Petitioner Companies, namely, **AVENUE SALES PRIVATE LIMITED** (Petitioner/ Transferor Company No.1), **BLACKBASS TRADELINK PRIVATE LIMITED** (Petitioner/ Transferor Company No.2), **GODHULI RETAILERS PRIVATE LIMITED** (Petitioner/ Transferor Company No.3), **HERITAGE COMMOSALES PRIVATE LIMITED** (Petitioner/ Transferor Company No.4), **RAM KRIPAL EXIM PRIVATE LIMITED** (Petitioner/ Transferor Company No.5), **ARYA TRADECOM PRIVATE LIMITED**, (Petitioner/ Transferor Company No.6), and **RAYANA PAPER BOARD INDUSTRIES**

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LIMITED (Petitioner/ Transferee Company No.7) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioners companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application was filed seeking directions for dispensation of the requirement of the convening meetings of the Equity Shareholders of the Applicant Companies, Secured Creditors of the Applicant Companies No.1 to 6, Unsecured Creditors of the Applicant Companies and to convene and hold the separate meeting of Secured Creditors of the Applicant Company No.1 *vide* CA (CAA) No.07/ALD/2023 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 27th July, 2023 and in the said order, the meetings of Equity Shareholders of Petitioner Companies, meetings of Unsecured Creditors of Petitioner Company No.1, 4 & 7, were directed to dispense with. Additionally, the meeting of Secured Creditors of the Petitioner Company No.7 was directed to be convened separately for the reasons mentioned in the aforesaid order. It was also directed that since there are no Secured and Unsecured Creditors in the Petitioner Company Nos.1 to 6 and Petitioner Company Nos.2, 3, 4 & 6 respectively, the requirement of convening the meetings of Secured and Unsecured Creditors does not arise.

3. The main objects, date of incorporation, authorized and paid-up share capital,

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and the rationale of the Scheme have been discussed in detail in the order dated 27th July, 2023.

4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies through speed post within two weeks to the following Authorities along with a copy of this petition in soft copy as well as hard copy :-

(i) Central Government through Regional Director (Northern Region), New Delhi;

(ii) Registrar of Companies, Uttar Pradesh, Kanpur;

(iii) Official Liquidator, Allahabad; and

(iv) Jurisdictional Income Tax Authority by mentioning the PAN of the Company.

5. Additionally, notice be issued to the concerned Assessing Officer of Income Tax Department as informed by the Ld. Counsel for the petitioner as per the PAN of the petitioner company.

6. In addition to the above public notices, the notice of hearing will also be advertised in "Financial Express" in English and "Amar Ujala" in Hindi language, having wide circulation over the area where the registered office of the companies are situated by not less than 10 days before the next date fixed for hearing.

7. The petitioner companies shall at least 7 days before the date of hearing of the petition, file an affidavit of service regarding newspaper publication, with

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newspaper clippings, as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed within 30 days of receipt of notice failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 6th December, 2023 for further consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

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(Ashish Verma)
Member (Technical)

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(Praveen Gupta)
Member (Judicial)

19th October, 2023

Priya Agarwal
(Stenographer)